No later than **August 10, 2026**, Plaintiff may file a supplemental opposition brief not exceeding seven pages, together with any declarations and exhibits responding to the supplemental declaration of Junior Bolanos and the declaration of Giovanni Saligan filed with Defendant's reply.

No later than **August 24, 2026**, Defendant may file a supplemental reply brief not exceeding seven pages. No further declarations or evidence may be submitted with the supplemental reply.

12. 9:00 AM CASE NUMBER: C24-03132
CASE NAME: SHAWN HOWARD VS. BMCH CALIFORNIA, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDMENT TO COMPLAINT TO ADD NEW PLAINTIFFS**
FILED BY: ABRAHAM, OMAR
****TENTATIVE RULING:****

This is plaintiffs' motion for leave to file a first amended complaint to add new plaintiffs. It is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days… before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings.

The motion is, therefore, granted. The "[Proposed] First Amendment to Complaint to Add New Plaintiffs" shall be filed and served on or before August 31, 2026.

13. 9:00 AM CASE NUMBER: C24-03379
CASE NAME: NAGESWARA VELINEDI VS. CAPITAL BENEFIT, INC.
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS CAPITAL BENEFIT, INC. ("CAPITAL BENEFIT"), PROVIDENT TRUST GROUP FBO GEORGE S. SIMMONS ROLLOVER IRA #3900656("SIMMONS") AND LAWRENCE E. ELKINS AND NORMA J. ELKINS, TRUSTEES ("ELKINS"), LAWRENCE C. HENIG, TRUSTEE ("HENIG") AND TOTAL LENDER SOLUTIONS, INC. ("TLS") (COLLECTIVELY, "DEFENDANTS")
FILED BY: CAPITAL BENEFIT, INC.
TENTATIVE RULING:

Before the Court is Defendants Capital Benefit, Inc., Provident Trust Group FBO George S. Simmons Rollover Ira #3900656, Lawrence E. Elkins and Norma J. Elkins, Trustees, Lawrence C. Henig, Trustee, and Total Lender Solutions, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication.

Defendants' Request for Judicial Notice of several public records and two Orders previously entered in this matter. The unopposed RJN is **granted**. (Evid. Code § 452 (d), (h).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Summary

On or about May 15, 2023, Defendants Provident Trust Group FBO George S. Simmons Rollover Ira #3900656, Lawrence E. Elkins and Norma J. Elkins, Trustees, Lawrence C. Henig, Trustee ("Beneficiary Defendants") made a loan to Plaintiffs in the principal amount of $590,000. (UMF 1.) Defendant Capital Benefit, Inc. was the loan servicing agent for the Beneficiary Defendants. (UMF 2.) The Loan was secured by a deed of trust recorded against real property located at 3391 Glencoe Circle in San Ramon, California (the "Property"). (UMF 3.)

Pursuant to the Loan, Plaintiffs were required to make monthly payments of $6,188.62. (UMF 4.) The maturity date for the Loan was June 1, 2026. (UMF 5.) Plaintiffs failed to timely make their first monthly Loan payment, which was due on July 1, 2023. (UMF 6.) Over the next six months, Plaintiffs promised to get current on Loan payments, but failed to do so. (UMF 7-8.)

On January 3, 2024, the Beneficiary Defendants caused a Notice of Default and Election to Sell Under Deed of Trust ("Initial NOD") to be recorded against the Property. (UMF 9.) As of January 2, 2024, the delinquent balance was $29,681.32. (UMF 10.) Plaintiffs promised to begin making 'catch up' payments to cure in exchange for the Beneficiary Defendants rescinding the Initial NOD. (UMF 11.) The Beneficiary Defendants agreed and recorded a Notice of Rescission of the Initial NOD on April 12, 2024. (UMF 12.)

Plaintiffs failed to make the promised monthly 'catch-up' payments for two consecutive months. (UMF 13.) As such, the Beneficiary Defendants recorded a second Notice of Default ("Second NOD")on May 14, 2024. (UMF 14.) On May 17, the foreclosure trustee – Defendant Total Lender Solutions, Inc. ("TLS") – sent the Second NOD to Plaintiffs via certified mail and first-class mail. (UMF 15.) The Beneficiary Defendants recorded a Notice of Trustee's Sale ("NOTS") on August 16, 2024. (UMF 16.) On August 19, 2024, TLS mailed the NOTS to Plaintiffs via certified and first-class mail. (UMF 17.) The public auction for the Property was initially scheduled for September 12, 2024. (UMF 18.)

On or about September 10, 2024, Plaintiffs and Beneficiary Defendants entered into a Forbearance Agreement. (UMF 19.) The Forbearance Agreement obligated the Beneficiary Defendants to postpone the foreclosure sale to October 23, 2024, if they received a cashier's check or wire in the amount of $45,000 by September 10, 2024, and other terms were honored. (UMF 21.) The Forbearance Agreement also made clear that the Second NOD was not rescinded and the "foreclosure action will not be canceled unless and until the loan is contractually reinstated or paid in full." (UMF 23.) Plaintiffs also agreed that the "foreclosure sale may proceed if there is any default in this agreement without any further notice." (UMF 24.)

After the $45,000 payment was made, Plaintiffs were obligated to resume regular monthly installment payments of $6,188.62. (UMF 25.) That payment was required to be received by Capital Benefit by no later than October 10, 2024. (UMF 26.) Plaintiffs were also required to provide written proof to Defendants that the senior loan was current, because the Loan was a junior lien and therefore at risk. (UMF 28.)

On or about September 9, 2024, Plaintiffs made the $45,000 payment under the Forbearance Agreement. (UMF 32.) Accordingly, the Beneficiary Defendants postponed the trustee's sale to October 23, 2024. (UMF 32.) Capital Benefit did not, however, receive the monthly payment due to it on or before October 10, 2024. (UMF 33.) Capital Benefit also did not receive written proof that the senior loan was current. (UMF 34.) Accordingly, Plaintiffs were in breach under the terms of the Forbearance Agreement.

The Beneficiary Defendants proceeded with the nonjudicial foreclosure sale on October 23, 2024. (UMF 36.) The Beneficiary Defendants were the highest bidder. (*Ibid.*) On December 11, 2024, the Trustee's Deed Upon Sale was recorded. (UMF 37.)

<u>Standard</u>

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the ranting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid*.; *see also Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; *if* he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.)

<u>Initial Considerations</u>

Separate Statement

Defendants' Separate Statement purportedly asserts 273 separate material facts, broken into seven separate sections – Noticed Issues 1-7. However, in reviewing the material facts, the same 39 facts are repeated over and over. For example, 'material fact' 1 is identical to material facts 40, 79, 118, 157, 196, and 235. In other words, there are only 39 material facts alleged. Repeatedly renumbering the same fact several times only makes reviewing the separate statement more time intensive. Once a 'material fact' is asserted – it does not need to be renumbered each time it is reasserted. Fact 1 is just fact 1.

Counsel is urged to try and make their papers easier for the Court to review and not more difficult going forward.

Bookmarks

"[E]lectronic exhibits ***must include*** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

Defendants' Request for Judicial Notice is 57 pages long and includes 10 separate documents. No electronic bookmarks with descriptions of the documents were provided. There were also three declarations filed in support which included exhibits. Each of the exhibit's bookmarks were merely labeled with the exhibit number – not a brief description of the exhibit, as required. Likewise, Plaintiff's declaration includes an exhibit without any electronic bookmark or description thereof.

Counsel are reminded to abide by all Rules of Court. This will greatly assist the Court it its review of their papers.

<u>Analysis</u>

Initially, the Court notes that Defendants rely in part on this Court's earlier ruling which deemed Defendants' Requests for Admission served on Plaintiffs admitted. (RJN Ex. 9; Mase Decl. Exs. 1-2.)

A defendant may rely on plaintiff's discovery responses to show that a cause of action has no merit and shift the burden to the plaintiff to demonstrate a triable issue of material fact. (*Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 451 *citing Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) "Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action …." (California Code of Civil Procedure §2033.410(a).) Admissions of a party, through requests for admission, are sufficient to support a motion for summary judgment. (*Gribin Von Dyl & Assocs. v. Kovalsky* (1986) 185 Cal.App.3d 653, 662; *see also* CCP 437c(b)(1) "The motion shall be supported by … admissions …".)

For ease of reference, the Court will just refer to the RFA number when discussing the applicable request, instead of repeatedly citing the exhibit numbers.

Plaintiffs' Opposition

Plaintiff's Opposition is three pages long (not counting the caption page) and cites a single case with general references to Civil Code §§2924-2924n. It does not cite any evidence, the separate statement, nor the declaration in support filed concurrently therewith. It also fails to address any of the legal arguments made by Defendants – or address any of the cases cited by Defendants. There is no discussion of any of the individual causes of action asserted by Plaintiffs.

Every memorandum of points and authorities "must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th

927, 934.)

In essence, Plaintiffs opposition merely argues that Plaintiffs did not receive notice of the default or trustee's sale – without any factual support or case law supporting that position. Plaintiff instead appears to rely solely on the language of the statutes. With this summary of the Opposition, the Court will address the issues raised by Defendant's MSJ.

Breach of Contract – Deed of Trust

"The standard elements of a claim for breach of contract are '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

"It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion." (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.) The Complaint alleges Defendants breached the terms of the Deed of Trust by failing to provide proper notice of the recording of the Notice of Default ("NOD") and Notice of Trustee's Sale ("NoTS"). (¶¶ 33-36.)

Defendants present evidence that the NOD and NoTS were properly served on Plaintiffs via mail. (UMF 15, 17.) Plaintiffs 'dispute' these facts by indicating that they 'never received any notices from Defendants in the mail. (*Ibid.* at responses.)

To be effective, the NOD and NoTS must be mailed to the trustor. (See e.g. *Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 88 citing Civil Code § 2924b(b)(2).) "The trustor need not receive *actual notice* of the trustee's sale so long as notice is provided to the trustor that is in compliance with the statute." (*Ibid.*)

"As one court has held: "We pointedly emphasize, however, that Civil Code sections 2924-2924h, inclusive, do not require actual receipt by a trustor of a notice of default or notice of sale. They simply mandate certain procedural requirements reasonably calculated to inform those who may be affected by a foreclosure sale and who have requested notice in the statutory manner that a default has occurred and a foreclosure sale is imminent." (*Ibid.* quoting *Lupertino v. Carbahal* (1973) 35 Cal.App.3d 742, 746-47.)

Defendants' evidence shows that the notices were properly sent in accordance with the statutory and contractual requirements. Plaintiffs presented no evidence to rebut this proper service. The declaration that Mr. Valinedi did not actually receive the notice does not negate Defendants' evidence of proper service.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Breach of Contract – Forbearance

Defendants first argue that Plaintiffs failed to perform under the Forbearance Agreement. Via Request for Admission number 10, both Plaintiffs admitted that they "failed to perform under the September 05, 2024, Forbearance/Modification Agreement…." (RFA 10.) As noted above, the second element of a breach of contract claim is "plaintiff's performance or excuse for nonperformance." (*Wall Street Network, Ltd.,* supra, 164 Cal.App.4th at 1178.) The RFAs definitively determine that Plaintiffs cannot satisfy this requirement – as they have admitted they failed to perform. They also fail to present any evidence that they were 'excused for non-performance.'

In addition to the above, Defendants present evidence to show that Plaintiffs failed to perform under the terms of the Forbearance Agreement. Pursuant thereto, Plaintiffs were required to re-start monthly payments of $6,188.62 which was to be received by Capital Benefit on or before October 10, 2024. (UMF 26.) If that payment was not received in a timely manner, the Beneficiary Defendants were authorized to proceed with the foreclosure sale without further notice. (UMF 27.)

Capital Benefit did not receive that payment by October 10, 2024. (UMF 33.) Plaintiffs 'dispute' this UMF by indicating that they 'attempted to make payment but Defendants would not accept.' (*Id.* response thereto.) Plaintiff Velinedi's declaration indicates that she ***attempted*** to make the payment on October 9, but her account on the website "was locked." (Valinedi Decl. ¶ 14.) She did not request a new link to make the payment until October 11, 2024. (*Id.* at ¶ 15; Ex. A.) This was *after* the Capital Benefits representative reminder her on October 10: "Per the agreement you signed, the payment is due today!" (Valinedi Decl. Ex. A at p. 1/6.) Plaintiffs present no evidence that they followed up after requesting the link – or that they actually made the required payment at any time. Plaintiffs' evidence supports the finding that they failed to timely make the required monthly payment.

Defendants also submit evidence that Plaintiffs failed to provide written proof that the senior loan was current. (UMF 28, 34.) Plaintiffs dispute UMF 34, regarding their failure to provide written proof that the senior loan was current, by asserting that the "senior loan was current," citing Velinedi's declaration at paragraph 19. The declaration, however, makes no such statement at paragraph 19 – or anywhere else. In fact, the 'senior loan' is not mentioned anywhere in the declaration.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Intentional Misrepresentation

"The essential elements of a count for intentional misrepresentation are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage." (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 230-31.)

Initially, as noted by Defendants, "Plaintiffs admitted that their "Fraudulent Misrepresentation claim has no merit…" via the deemed admitted RFAs. (RFA 15.) In addition, Defendants have presented evidence showing that Plaintiffs failed to meet their burden to prove this cause of action.

The Complaint alleges that the misrepresentations relate to the terms of the Forbearance Agreement. Specifically, Plaintiffs allege:

> "On or about September 10, 2024, Defendants offered and Plaintiffs accepted a Forbearance Agreement, whereby Defendants demanded and Plaintiffs tendered a lump sum payment of $45,000.00 to be applied toward the default payments and late charges. In exchange, Defendants agreed to postpone the foreclosure sale continuously, in 30 day increments, so long as Plaintiffs tendered their regular monthly payments beginning October 10, 2024. When Plaintiffs tendered the regular monthly payment as scheduled, Defendants rejected the payment and proceeded to foreclose on the Property in breach of the Forbearance Agreement." (¶ 50.)

As Defendants concede, the Forbearance Agreement did require a postponement to the nonjudicial foreclosure sale from September 12 to October 23, 2024, if Capital Benefit receive a payment from Plaintiffs in the amount of $5,000 by September 10, 2024. (UMF 21.) Plaintiffs made the required payment on September 9, 2024, and the Beneficiary Defendants postponed the trustee's sale to October 23, 2024. (UMF 32.)

The issue, however, relates to the requirement that "Plaintiffs tendered their regular monthly payments beginning October 10, 2024." (¶ 50.) As outline above in the Breach of Contract – Forbearance section, Defendants have adequately evidenced that Plaintiffs failed to timely make the October 10 payment.

The fact that Defendants *did* postpone the nonjudicial foreclosure sale upon receipt of the $45,000 payments shows their intent to abide by the terms of the Forbearance Agreement. It was only after Plaintiff's failed to make the required monthly payment in a timely manner that Defendants moved forward with the foreclosure sale – which was their right under the terms of the Forbearance Agreement.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Negligence

Plaintiff's negligence cause of action is based upon the same facts as the Breach of Contract – Deed of Trust cause of action. That is, Plaintiffs allege that Defendants owed them a duty to provide proper notice of the NOD and NoTS and the Defendants failed to do so. Accordingly, this cause of action fails for the same reasons outlined above with respect to the first cause of action for Breach of Contract – Deed of Trust.

Defendants also argue that Plaintiffs have failed to show that they owed a duty to Plaintiffs. A financial institution "owes no duty of care to a borrower when the institution's involvement in the loan transaction does not exceed the scope of its conventional role as a mere lender of money." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 927.) "Liability to a borrower for negligence arises only when the lender 'actively participates' in the financed enterprise 'beyond the domain of the usual money lender.'" (*Wagner v. Benson* (1980) 101 Cal.App.3d 27, 35.) "Normal supervision of the enterprise by the lender for the protection of its security interest in loan collateral is not 'active participation.'" (*Ibid.*)

Plaintiff has not alleged, nor provided evidence, that Defendant institutions 'actively participated' in the financed enterprise 'beyond the domain of the usual money lender.' As such, Defendants have met their burden to show that Plaintiffs cannot establish a duty to support their negligence cause of action.

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Wrongful Foreclosure

The basic elements of a tort cause of action for wrongful foreclosure are "(1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale (usually but not always the trustor or mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering." (*Miles v. Deutsche Bank National Trust Co.* (236 Cal.App.4th 394, 408.)

Initially, Plaintiffs admitted that "Defendants did not conduct a Wrongful Foreclosure…." (RFA 17, all caps removed.) This alone is sufficient to grant Defendants' motion as to this cause of action.

In addition, this cause of action is also based on the Defendants' alleged failure to give proper notice of the NOD and NoTS. As outlined above, Defendants provided proper notice by mail – and Plaintiffs' claims to have not received the notices are irrelevant. (See *Knapp*, supra, 123 Cal.App.4th at 88 quoting *Lupertino*, supra, 35 Cal.App.3d at 746-47.)

Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Cancellation of Instruments

Again, this cause of action is also based on the alleged failure to provide proper notice of the NOD and NoTS.

Plaintiffs admitted that the Loan Note, Deed of Trust, and Forbearance Agreement were all serviced in compliance with all applicable laws. (RFAs 7, 12.) They also admit that Defendants did not wrongfully foreclose. (RFA 17.)

In addition to these admissions, as outlined thoroughly above, Defendants have shown that all notices were properly sent – which is all that is required. Based on the above, Defendants have met their initial burden showing of the nonexistence of any triable issue of material fact. Plaintiffs have failed to meet their corresponding burden of production to make a prima facie showing of the existence of a triable issue of material fact as to this cause of action.

Declaratory Judgment

The declaratory judgment cause of action seeks a declaration indicating that the NOD and NoTS were improperly recorded and not properly served. This cause of action fails for all the same reasons outlined above.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **granted**.

14. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's